Syllabus

CHILES *v.* SALAZAR, EXECUTIVE DIRECTOR OF THE COLORADO DEPARTMENT OF REGULATORY AGENCIES, ET AL.

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE TENTH CIRCUIT

No. 24–539. Argued October 7, 2025—Decided March 31, 2026

Kaley Chiles holds a master's degree in clinical mental health and a state counseling license in Colorado. Ms. Chiles does not begin counseling with any predetermined goals; instead, she sits down with clients, discusses their goals, and then formulates methods of counseling that will most benefit them, seeking throughout to respect her clients' fundamental right of self-determination. On matters of sexuality and gender, Ms. Chiles's clients, including young people, often have different goals: Some are content with their sexual orientation and gender identity and want help with social issues or family relationships, while others hope to reduce or eliminate unwanted sexual attractions, change sexual behaviors, or grow in the experience of harmony with their bodies. With all those clients, Ms. Chiles seeks to help them reach their stated objectives. And she employs only talk therapy.

Page Proof Pending Publication

In 2019, Colorado adopted a law prohibiting licensed counselors from engaging in "conversion therapy" with minors, Colo. Rev. Stat. § 12–245–224(1)(t)(V), defining the term to include "any practice or treatment . . . that attempts . . . to change an individual's sexual orientation or gender identity," as well as any "effor[t] to change behaviors or gender expressions or to eliminate or reduce sexual or romantic attractions toward individuals of the same sex," § 12–245–202(3.5)(a). Yet the law explicitly allows counselors to provide "[a]cceptance, support, and understanding for . . . identity exploration and development," § 12–245–202(3.5)(b)(I), and to assist persons "undergoing gender transition," § 12–245–202(3.5)(b)(II). Ms. Chiles filed suit in federal court seeking a preliminary injunction, raising a First Amendment challenge to the law as it applies to her talk therapy.

Both the district court and the Tenth Circuit determined that Ms. Chiles had Article III standing to pursue her as-applied pre-enforcement challenge. On the merits, however, both courts denied Ms. Chiles's request for a preliminary injunction, reasoning that Colorado's law is best understood as regulating professional conduct and that it regulates speech only incidentally, thus triggering no more than rational-basis review under the First Amendment. This Court granted certio-

rari to resolve a circuit conflict over how the First Amendment interacts with laws like Colorado's when those laws are applied to talk therapy.

Held: Colorado's law banning conversion therapy, as applied to Ms. Chiles's talk therapy, regulates speech based on viewpoint, and the lower courts erred by failing to apply sufficiently rigorous First Amendment scrutiny. Pp. 639–655.

(a) The First Amendment protects the inalienable right of every individual to decide for himself "how best to speak," *Riley* v. *National Federation of Blind of N. C., Inc.*, 487 U. S. 781, 791, and laws regulating speech based on its subject matter or "communicative content" are "presumptively unconstitutional," triggering "strict scrutiny" that requires the government to prove its restriction is "narrowly tailored to serve compelling state interests," *Reed* v. *Town of Gilbert*, 576 U. S. 155, 163. "Viewpoint discrimination" represents an even more "egregious form" of content regulation from which governments must nearly always "abstain." *Rosenberger* v. *Rector and Visitors of Univ. of Va.*, 515 U. S. 819, 829.

The Court has recognized only a "few historic and traditional categories of expression"—such as fraud, defamation, and "fighting words"—where content-based restrictions do not automatically trigger strict scrutiny. *United States* v. *Alvarez*, 567 U. S. 709, 717. These categories are narrowly drawn and share a long and well-recognized historical pedigree.

Page Proof Pending Publication

A law regulating the content of speech cannot avoid searching First Amendment review just because it mostly regulates non-expressive conduct. What matters is whether, in fact, the law regulates speech in the case at hand, as illustrated by *Cohen* v. *California*, 403 U. S. 15, and *Holder* v. *Humanitarian Law Project*, 561 U. S. 1. And the First Amendment's protections extend to licensed professionals much as they do everyone else. *National Institute of Family and Life Advocates* v. *Becerra*, 585 U. S. 755, 766–767. Pp. 640–643.

(b) As applied to Ms. Chiles, Colorado's law regulates the content of her speech and goes further to prescribe what views she may and may not express, discriminating on the basis of viewpoint. The law permits her to express acceptance and support for clients exploring their identity or undergoing gender transition, § 12–245–202(3.5)(b), but forbids her from saying anything that attempts to change a client's "sexual orientation or gender identity," including efforts to change "behaviors," "gender expressions," or "romantic attraction[s]," § 12–245–202(3.5)(a). Her speech does not become "conduct" just because a government says so or because it may be described as a "treatment" or "therapeutic modality." The First Amendment is no word game, and "the exercise of

constitutional rights" cannot be circumscribed "by mere labels." *NAACP* v. *Button*, 371 U. S. 415, 429.

The fact that the State's viewpoint regulation falls only on licensed health care professionals does not change the equation. The First Amendment protects the right of all to speak their minds, and *NIFLA* expressly rejected the notion that professional speech is subject to "'diminished constitutional protection.'" 585 U. S., at 767. History is littered with examples of governments that have sought to manipulate professional speech "to increase state power," "suppress minorities," and censor "'unpopular ideas.'" *Id.*, at 771.

Colorado's law does not implicate any recognized exception to the Court's usual First Amendment rules. It does not require disclosure of "factual, noncontroversial information in . . . 'commercial speech,'" *id.*, at 768, and as applied to Ms. Chiles, it does not regulate conduct in a way that only "incidentally burden[s] speech," *id.*, at 769. All she does is speak, and speech is all Colorado seeks to regulate.

Colorado's argument that the law regulates speech only incidentally fails because the Court's speech-incident-to-conduct doctrine asks whether the law restricts speech only because it is integrally related to unlawful conduct, or whether the law restricts expressive conduct only for reasons unrelated to its content. Colorado's law does neither: Ms. Chiles's speech does not bear a close causal connection to any separately unlawful conduct, and the State's law trains directly on the content of her speech, permitting some viewpoints but not others. Pp. 643–650.

Page Proof Pending Publication

(c) Colorado cannot establish that applying its law to Ms. Chiles falls within a long tradition of permissible content regulation.

Colorado's arguments proceed at far too high a level of generality, asking the Court to recognize a broad "'First Amendment Free Zone'" for speech the State considers "substandard care." *United States* v. *Stevens*, 559 U. S. 460, 469. The Court's precedents foreclose aggregating discrete traditions of content-based regulations to sustain some new and broader category of lesser-protected speech.

Even taking each of the traditions Colorado invokes on its own terms, none supports the State's position. Colorado's suggestion that the statute represents a traditional law licensing of medicine fails because the State has not presented persuasive evidence of a historic tradition—the first state "counselor-licensure bill" was adopted only in 1976—and because licensing laws have traditionally addressed qualifications, not dictated a professional's point of view. Colorado's analogy to informed-consent laws fails because such laws regulate speech only incident to separate physical conduct and usually require disclosure of only factual and uncontroversial information, whereas Colorado's law as applied to Ms. Chiles seeks to silence a viewpoint she wishes to express. Finally,

Syllabus

Colorado's invocation of traditional tort claims for malpractice fails because malpractice actions require exacting proof of injury caused by breach of duty, "provid[ing] breathing room for protected speech," *Illinois ex rel. Madigan* v. *Telemarketing Associates, Inc.*, 538 U. S. 600, 620, whereas Colorado's law threatens fines, probation, and loss of license simply for expressing a particular view, and does not allow clients to consent to practices that depart from the prevailing standard of care. Pp. 650–655.

(d) The First Amendment stands as a bulwark against any effort to prescribe an orthodoxy of views, reflecting a belief that each American enjoys an inalienable right to speak his mind and a faith in the free marketplace of ideas as the best means for finding truth. Laws like Colorado's, which suppress speech based on viewpoint, represent an egregious assault on both commitments. P. 655.

116 F. 4th 1178, reversed and remanded.

GORSUCH, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, ALITO, SOTOMAYOR, KAGAN, KAVANAUGH, and BARRETT, JJ., joined. KAGAN, J., filed a concurring opinion, in which SOTOMAYOR, J., joined, *post*, p. 655. JACKSON, J., filed a dissenting opinion, *post*, p. 659.

Page Proof Pending Publication

James A. Campbell argued the cause for petitioner. With him on the briefs were *Kristen K. Waggoner*, *Barry K. Arrington*, *Shaun Pearman*, *John J. Bursch*, *David A. Cortman*, *Erin M. Hawley*, *Caroline C. Lindsay*, *Jonathan A. Scruggs*, *Jacob P. Warner*, *Roger G. Brooks*, and *Bryan D. Neihart*.

Principal Deputy Solicitor General Moopan argued the cause for the United States as *amicus curiae* supporting petitioner. With him on the brief were *Solicitor General Sauer*, *Assistant Attorney General Shumate*, *Zoe A. Jacoby*, *Michael S. Raab*, and *Lowell V. Sturgill, Jr.*

Shannon Wells Stevenson, Solicitor General of Colorado, argued the cause for respondents. With her on the brief were *Philip J. Weiser*, Attorney General of Colorado, *Helen Norton*, Deputy Solicitor General, *Andrew M. Williams*, Assistant Deputy Attorney General, *Robert W. Finke*, First Assistant

Counsel

Attorney General, and *Janna K. Fischer*, *Abby Chestnut*, and *Talia Kraemer*, Assistant Solicitors General, and *Brianna S. Tancher*, Assistant Attorney General.*

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*Briefs of *amici curiae* urging reversal were filed for the State of Iowa et al. by *Brenna Bird*, Attorney General of Iowa, *Eric Wessan*, Solicitor General, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Treg Taylor* of Alaska, *Tim Griffin* of Arkansas, *James Uthmeier* of Florida, *Chris Carr* of Georgia, *Raúl R. Labrador* of Idaho, *Kris Kobach* of Kansas, *Russell M. Coleman* of Kentucky, *Liz Murrill* of Louisiana, *Andrew T. Bailey* of Missouri, *Austin Knudsen* of Montana, *Michael T. Hilgers* of Nebraska, *Drew Wrigley* of North Dakota, *Dave Yost* of Ohio, *Gentner Drummond* of Oklahoma, *Alan Wilson* of South Carolina, *Marty Jackley* of South Dakota, *Ken Paxton* of Texas, and *John B. McCuskey* of West Virginia; for the Alliance for Therapeutic Choice and Scientific Integrity by *Nicholas P. Miller*; for the American College of Pediatricians by *Gene C. Schaerr*, *Edward H. Trent*, and *John Greil*; for the American Unity Fund et al. by *Megan M. Wold*; for the Americans for Prosperity Foundation et al. by *Cynthia Fleming Crawford*, *Casey Mattox*, *James L. Kerwin*, and *William E. Trachman*; for America's Frontline Doctors et al. by *David A. Dalia*; for America's Future et al. by *William J. Olson*, *Jeremiah L. Morgan*, and *Joseph W. Miller*; for the Anglican Church in North America et al. by *R. Shawn Gunnarson* and *Christopher A. Bates*; for the Association of American Physicians and Surgeons by *Andrew L. Schlafly*; for the Association of Certified Biblical Counselors by *Michael S. Overing*, *Edward C. Wilde*, and *Itzel Morales*; for the Becket Fund for Religious Liberty by *Adèle A. Keim*, *Luke W. Goodrich*, *Rebekah P. Ricketts*, *Benjamin A. Fleshman*, and *Amanda G. Dixon*; for Catholic Licensed Counselors et al. by *Frederick W. Claybrook, Jr.*; for the CatholicVote.org Education Fund by *Scott W. Gaylord*; for the Changed Movement by *Samuel J. Salario, Jr.*; for the Christian Family Coalition (CFC) Florida, Inc., by *Dennis Grossman*; for the Christian Legal Society by *Steven T. McFarland*, *Laura Nammo*, *Lori Kepner*, and *Dustin D. Romney*; for the Colson Center for Christian Worldview et al. by *Michael Francisco* and *Andrew Nussbaum*; for Do No Harm, Inc., by *David H. Thompson* and *Brian W. Barnes*; for the Family Research Council et al. by *Christopher E. Mills*; for First Amendment Scholars by *William H. Hurd* and *Michael W. Thomas*; for the Foundation for Moral Law by *John A. Eidsmoe*; for the Frontline Policy Council et al. by *Kristine L. Brown*; for Heartbeat International by *Patrick Strawbridge*, *Tiffany H. Bates*, *Kelly J. Shackelford*, *Jeffrey C. Mateer*, *David J. Hacker*, and *Jeremiah G. Dys*; for the Institute for Free Speech by *Owen*

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JUSTICE GORSUCH delivered the opinion of the Court.

Kaley Chiles is a mental-health counselor in Colorado. In this case, we consider her First Amendment challenge to a

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Yeates; for Jaco Booyens Ministries (JBM) et al. by *Frank J. Wright*; for Legislators from 30 State Legislatures by *William Wagner*; for Liberty Counsel by *Mathew D. Staver*, *Anita L. Staver*, and *Horatio G. Mihet*; for the Liberty Justice Center by *Jeffrey Schwab*; for the Manhattan Institute et al. by *Ilya Shapiro* and *Howard Slugh*; for Medical Professionals by *John C. Sullivan* and *Robert P. George*; for the National Association of Scholars by *Dennis J. Saffran*; for National Religious Broadcasters by *Michael P. Farris*; for the NC Values Institute et al. by *Deborah J. Dewart*, *Tami Fitzgerald*, and *Robert H. Tyler*; for Our Duty-USA et al. by *Daniel Cragg*; for the Pacific Legal Foundation by *Ethan W. Blevins* and *Caleb R. Trotter*; for Sexual Orientation Scholars by *Jonathan R. Whitehead*; for the United States Conference of Catholic Bishops et al. by *Nicholas J. Nelson*; for the Women's Liberation Front by *Elspeth B. Cypher*; for Erin Brewer et al. by *Renee K. Carlson* and *Douglas G. Wardlow*; for Joy Buchman et al. by *Luke N. Berg* and *Richard M. Esenberg*; for Sexuality Research Scholar Amy E. Hamilton by *Randall L. Wenger* and *Janice L. Martino-Gottshall*; for Mary Hasson et al. by *Thomas Brejcha*; for Anthony M. Joseph by *Allan E. Parker, Jr.*, *R. Clayton Trotter*, and *Steven W. Fitschen*; and for David A. Robinson, *pro se*. *Robert J. McNamara*, *Samuel B. Gedge*, *Andrew Ward*, *Michael N. Greenberg*, *Jeffrey T. Rowes*, and *Paul V. Avelar* filed a brief for Parties in Other First Amendment Cases Pending Before the Court urging vacatur and remand.

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Briefs of *amici curiae* urging affirmance were filed for the State of Washington et al. by *Nicholas W. Brown*, Attorney General of Washington, *Noah G. Purcell*, Solicitor General, *Cristina Sepe*, Deputy Solicitor General, and by the Attorneys General for their respective jurisdictions as follows: *Rob Bonta* of California, *William Tong* of Connecticut, *Kathleen Jennings* of Delaware, *Brian L. Schwalb* of the District of Columbia, *Anne E. Lopez* of Hawaii, *Kwame Raoul* of Illinois, *Aaron M. Frey* of Maine, *Anthony G. Brown* of Maryland, *Andrea Joy Campbell* of Massachusetts, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Aaron D. Ford* of Nevada, *Matthew J. Platkin* of New Jersey, *Raúl Torrez* of New Mexico, *Letitia James* of New York, *Jeff Jackson* of North Carolina, *Dan Rayfield* of Oregon, *Peter F. Neronha* of Rhode Island, *Charity R. Clark* of Vermont, and *Joshua L. Kaul* of Wisconsin; for the American Psychological Association et al. by *Jessica Ring Amunson*, *Deanne M. Ottaviano*, and *Aaron M. Panner*; for the Constitutional Accountability Center by *Eliza-*